

table, as of the legal interest in lands (*a*), the equitable interest might at any time have been claimed by the Crown. The legal estate was not affected (*b*), but the Crown had the right of suing a *subpœna* against the trustee in equity (*c*). An alien could not, however, take an equitable interest by *act of law* as by descent or curtesy (*d*).

Executory trust for alien. — A distinction was taken, that although where a trust was perfected in favour of an alien the Crown might be entitled, yet where a trust in favour of an alien was not in *esse*, but only in *fieri* and executory, the court would do no act to give it to the Crown in the right of the alien (*e*).

Alien might be cestui que trust of proceeds of sale of land. — Where a testator directed an estate to be sold, and the proceeds divided amongst certain persons, some of whom were aliens; there, as according to the intention, which was supposed to be executed at the time of the death, the interest devised was money, the Crown was not entitled, for the mere purpose of working a forfeiture, to exercise an election by retaining the property as land; and therefore, aliens were not debarred from enjoying their legacies in the pecuniary character which the testator had stamped upon them (*f*).¹

33 Vict. c. 14. — Now by 33 Vict. c. 14, an alien may take, acquire, hold, and dispose of real and personal property of

(*a*) Attorney-General *v.* Sands, Hard. 495, *per* Lord Hale; Fourdrin *v.* Gowdey, 3 M. & K. 383. See Burne *v.* Macdonald, 15 Sim. 6.

(*b*) King *v.* Holland, Al. 14; Sir John Dack's case, cited *ib.* 16; Attorney-General *v.* Sands, Hard. 495, *per* Lord Hale.

(*c*) Sharp *v.* St. Sauveur, 7 L. R. Ch. App. 351; King *v.* Holland, Al. 16, *per* Rolle, J.; Roll. Ab. 194, pl. 8. See Burne *v.* Macdonald, 15 Sim. 6; Burgess *v.* Wheate, 1 Eden, 188.

(*d*) See Calvin's case, 7 Rep. 40;

Dumoncel *v.* Dumoncel, 13 Ir. Eq. R. 92. As to dower, see Co. Lit. 31 b, note (9) by Harg.

(*e*) See Burne *v.* Macdonald, 15 Sim. 14; Rittson *v.* Stordy, 3 Sm. & Gif. 240, but see Barrow *v.* Wadkin, 24 Beav. 1; Sharp *v.* St. Sauveur, 7 L. R. Ch. App. 351.

(*f*) Du Hourmelin *v.* Sheldon, 1 Beav. 79, 4 Myl. & Cr. 525; Sharp *v.* St. Sauveur, 17 W. R. 1002, 20 L. T. N.S. 799, overruled on another ground, 7 L. R. Ch. App. 343, and see Master *v.* De Croismar, 11 Beav. 184.

¹ Anstice *v.* Brown, 6 Paige, 448; Hubbard *v.* Goodwin, 3 Leigh, 492; Trezevant *v.* Howard, 5 Del. 87; Craig *v.* Leslie, 3 Wheat. 563; Leggett *v.* Du Bois, 5 Paige, Ch. 114; Bradwell *v.* Weeks, 1 Johns. Ch. 206; Hamersley *v.* Lambert, 2 Johns. Ch. 508; Taylor *v.* Benham, 5 How. 270.